

AMENDED AND RESTATED CERTIFICATE OF INCORPORATION OF URBANWIND TECHNOLOGIES, INC.

The undersigned corporation, UrbanWind Technologies, Inc., a Delaware corporation (the "Corporation"), hereby certifies as follows:

ARTICLE I

The name of the Corporation is UrbanWind Technologies, Inc.

ARTICLE II

The address of the Corporation's registered office in the State of Delaware is 1209 Orange Street, in the City of Wilmington, County of New Castle, 19801. The name of its registered agent at this address is The Corporation Trust Company.

ARTICLE III

The purpose of the Corporation is to engage in any lawful act or activity for which corporations may be organized under the General Corporation Law of Delaware.

ARTICLE IV

The total number of shares of stock that the Corporation shall have authority to issue is 50,000,000, consisting of:

- 40,000,000 shares of Common Stock, par value \$0.0001 per share; and
- 10,000,000 shares of Preferred Stock, par value \$0.0001 per share, issuable in series, the designations, powers, preferences, rights, qualifications, limitations, or restrictions of which shall be as determined from time to time by the Board of Directors of the Corporation in accordance with the Delaware General Corporation Law.
- The Board of Directors is hereby authorized to issue, from time to time, shares of Preferred Stock in one or more series and to fix the number of shares to be included in each such series and the designation, powers, preferences, rights, qualifications, limitations, or restrictions thereof.

ARTICLE V

The name and mailing address of the incorporator are as follows:

Elena Rodriguez 5009 Mission St. San Francisco, CA 94124

ARTICLE VI

In furtherance and not in limitation of the powers conferred by statute, the Board of Directors is expressly authorized to make, alter or repeal the Bylaws of the Corporation.

ARTICLE VII

Elections of directors need not be by written ballot unless the Bylaws of the Corporation shall so provide.

ARTICLE VIII

To the fullest extent permitted by the Delaware General Corporation Law, as it exists or may hereafter be amended, a director of the Corporation shall not be personally liable to the Corporation or its stockholders for monetary damages for breach of fiduciary duty as a director; provided, however, that the foregoing shall not eliminate or limit the liability of a director (i) for any breach of the director's duty of loyalty to the Corporation or its stockholders, (ii) for acts or omissions not in good faith or which involve intentional misconduct or a knowing violation of law, (iii) under Section 174 of the Delaware General Corporation Law, or (iv) for any transaction from which the director derived an improper personal benefit.

ARTICLE IX

The Corporation reserves the right to amend, alter, change or repeal any provision contained in this Restated Certificate of Incorporation, in the manner now or hereafter prescribed by statute, and all rights conferred upon stockholders herein are granted subject to this reservation.

IN WITNESS WHEREOF, the undersigned, being the incorporator hereinbefore named, has executed this Amended and Restated Certificate of Incorporation on June 15, 2022.



Elena Rodriguez, Incorporator